

Archana Yogendra Tiwari vs Yogendra Mohan Tiwari on 20 April, 1993

Equivalent citations: 1994(0)MPLJ285

ORDER

R.P. Awasthy, J.

1. The petitioner, named above, has filed the present revision petition against the order dated 10-3-1992 passed by Smt. Minj, IV Additional Judge to the Court of District Judge, Jabalpur. By virtue of the said order, the non-applicant (herein) has been ordered to pay maintenance allowance to the petitioner (herein) at the rate of Rs. 500/- per month during the pendency of the case and also to pay Rs. 1500/- for meeting expenditure of the litigation.

2. The facts of the case are that the petitioner is the married wife of the non-applicant and the non-applicant resides at Bargi Nagar, district Jabalpur while the petitioner is residing with her parents at Jabalpur. The non-applicant filed a petition under Section 13 of the Hindu Marriage Act, 1955 ('the Act' in short) for a decree of divorce being passed in his favour and against the present petitioner. In the said case, the present petitioner filed an application under Section 24 of the Act mentioning therein that the non-applicant, who is a junior engineer in the Irrigation Department, was getting a salary of Rs. 2500/- per month and also had agricultural lands from which property he gets an annual income of Rs. 50,000/-. Thus, the total annual income of the present non-applicant is Rs. 80,000/- and no one, except the present petitioner, is dependent on him. The petitioner has no independent source of income and she is rather constrained to live with her parents.

3. The non-applicant denied the said allegations and submitted that at the time of filing of the petition, his salary was Rs. 1682/- per month and at the time of passing of the order, his salary was 2318/-. Only agricultural land having an area of three acres and a half, which was given to him by his uncle, was recorded in his name. However, the said land also was in possession of his uncle and he was not deriving any income from the said land. The petitioner was serving in some school situated in Hatital Colony and was getting Rs. 850/- per month as salary.

4. After recording evidence, the trial court came to a finding that the present petitioner had no independent source of income and that the presesnt non-applicant was getting Rs. 1682/- per month as his salary at the time when the application under Section 24 of the Act was moved and was getting Rs. 2318/- per month when the order was passed. The trial court also came to a finding that the non-applicant was not required to maintain anyone else, except the petitioner. On the basis of the said findings, the trial court ordered that the non-applicant should pay to the petitioner maintenance allowance at the rate of Rs. 500/- per month from the date of filing of the application under Section 24 of the Act, till the pendency of the case. It also awarded Rs. 1500/- for meeting

expenditure of the present litigation.

5. As far as the lump sum amount ordered to be paid for meeting expenditure of the litigation, the said amount appears to be reasonable and does not call for interference by the revisional court.

6. As regards maintenance allowance pendente lite several facts have to be taken into consideration. Now, it is a settled principle of law that there is no hard and fast rule for allowing one-fifth or one-fourth or one third of the income of the husband as maintenance allowance. In this regard, the amplest discretion is conferred on the Court. Any decision under the present section on the subject of alimony must necessarily turn on the circumstances of each case and no fixed rules can be expected on the question. Therefore, neither the minimum nor the maximum in terms of percentage can be fixed for the maintenance allowance under Section 24 of the Act. This section does not stipulate anything about the standard to be maintained by either of the parties that the wife must be maintained at the same standard as the husband or vice versa. Nevertheless, it has also to be considered that while awarding alimony under Section 24 of the Act, the Court must keep in view that one cannot live like a lord and the other like a maid nor one can live like a princess and the other like a servant. There must be some balance. It cannot be that while one lives in penury the other lives in grand style. Please see *Preeh v. Ravindra Kumar Sharma*, AIR 1979 All. 29.

7. In the above referred authority of Allahabad High Court, it was held that amongst the other circumstances, it should also be considered by the Court as to whether the wife has the support of her parents or such others. It is true that while considering whether any grant of alimony should be ordered, the goodwill or charity of relations and friends cannot be taken into account. Please see *Radhikabai v. Sadharam*, 1969 MPLJ 565 = AIR 1970 MP 14. That is to say, the support given by the parents of the wife would not disentitle her from claiming maintenance allowance from her husband and the said support cannot be treated as independent income of the wife. Nevertheless, while determining the quantum of the alimony pendente lite, the said aspect of support from parents can also be taken into consideration.

8. Now, coming to the facts of the present case, it is established that on 10-3-1992 the present non-applicant was receiving Rs. 2318/- per month as his salary. It is not known as to from which date his pay scale was revised and consequent to revision of his pay scale, he started getting Rs. 2318/- in place of Rs. 1682/-. This aspect was within the special knowledge of the non-applicant and hence it was he who was supposed to show as to from which exact date he actually started getting Rs. 2318/- per mensem. There is no mention regarding this aspect in the relevant order as to from which date the petitioner started getting an enhanced amount as his salary, either on account of revision of pay scale or enhancement of dearness allowance or on account of which reason. Therefore, it is not very material as to what amount he was actually receiving on the date of filing of the petition. It is so because, it is quite likely that consequent to the probable revision of pay scale of the petitioner, he started getting salary at the enhanced rate of Rs. 2318/- per month from a date which was much earlier than the date of passing of the relevant order.

9. It is also to be seen that admittedly, the agricultural land having at least an area of three acres and a half was recorded in the name of the present non-applicant and normal presumption is that the

non-applicant was receiving some income from the said agricultural land also. It has also been established that no one except the petitioner is dependent upon the present non- applicant. It is also established that the present petitioner had no independent source of income. Nevertheless, it has also to be seen that the present petitioner was residing with her parents and she had the facility of shelter, that is facility of living in the residential house of her parents. Considering the entire facts and circumstances of the case in my opinion, an amount of Rs. 750/- per month as maintenance allowance for the present petitioner Smt. Archana Tiwari is just, proper and adequate.

10. Consequently, the present revision/petition is partially allowed and maintenance allowance is enhanced from Rs. 500/- to 750/- per month. Remaining part of the order passed by the learned IVth Additional Judge to the Court of District Judge is maintained and confirmed looking to the facts and circumstances of the case, it is ordered that the parties to the revision shall bear their own costs.